

3	Mugavero vs. Lendward 2026-01547162	Motion to Be Relieved as Counsel of Record Attorneys Vanya Khanna and Lipeles Law Group, APC's motion to withdraw as counsel of record for plaintiff Chad Mugavero is GRANTED. Moving Parties shall file an amended proposed order with Plaintiff's correct address. The current proposed order contains an error. The order shall become effective upon the filing of the proof of service of the (amended) signed order upon the client. (See Cal. Rules of Court, rule 3.1362.) Moving Parties shall give notice.
5	Hainan Guanghua Group USA vs. Guo 2025-01465422	Motion to Be Relieved as Counsel of Record Attorney Mary Liu and Law Office of Mary Liu's motion to be relieved as counsel of record for Qingdao Wodi International Trading Co., Ltd. is GRANTED. Moving counsel shall file an amended proposed order with Responding Party's (client) correct address. The current proposed order contains no address. The order shall become effective upon the filing of the proof of service of the (amended) signed order upon the client. (See Cal. Rules of Court, rule 3.1362.) Attorney Liu shall give notice.
10	Wang vs. Jan 2026-01551895	Motion for Order to Stay Proceedings Trial courts generally have the inherent power to stay proceedings in the interests of justice and to promote judicial efficiency. (CCP 187; Freiberg v. City of Mission Viejo

	(1995) 33 Cal.App.4th 1484, 1489; Adams v. Paul (1995) 11 Cal.4th 583, 600.) The court's discretion to stay civil proceedings also applies while a criminal action is pending, in which case the court may also use "sound discretion" to "assess and balance the nature and substantiality of the injustices claimed on either side." (Avant, supra at 881-882.) The criminally charged party or witness may seek a stay of discovery on this ground, but again, such a stay is discretionary: "defendant has no right to a blanket stay on 5th Amendment grounds." (Rutter Group, Civil Procedure Before Trial, Chapter 8C-3, Section 8:136, citing Klein v. Superior Court (1988) 198 Cal.App.3d 894, 905.) Alternatively, the court may instead require a civil defendant facing parallel criminal proceedings to assert any 5th Amendment privilege in response to specific discovery requests and/or depo questions, rather than a full stay of civil proceedings, and/or discovery generally. (Warford v. Medeiros, supra at 1045; In re Marriage of Sachs (2002) 95 Cal.App.4th 1144, 1151.) In Pacers, supra, the court upheld a discovery stay as to defendants' depositions until the criminal statute of limitations had expired: An order staying discovery until expiration of the criminal statute of limitations would allow real parties to prepare their lawsuit while alleviating petitioners' difficult choice between defending either the civil or criminal case. [Citation.] This remedy is in accord with federal practice where it has been consistently held that when both civil and criminal proceedings arise out of the same or related transactions, an objecting party is generally entitled to a stay of discovery in the civil action until disposition of the criminal matter. [Citations.] The rationale ... is based on Fifth Amendment principles as well as the inherent unfairness of compelling disclosure of a criminal defendant's evidence and defenses before trial ... the prosecution should not be able to
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		obtain, through the medium of the civil proceedings, information to which it was not entitled under the criminal discovery rules. [Citation.] (Id. at 690; emphasis added.) The factors to be considered in whether to grant a stay due to pending criminal proceedings are: (1) the extent to which defendants' 5th Amendment rights are implicated; (2) the interest of the plaintiffs in proceeding expeditiously with this litigation or any particular aspect of it, and the potential prejudice to plaintiffs of a delay; (3) the burden which any particular aspect of the proceedings may impose on defendants; (4) the convenience of the court in the management of its cases, and the efficient use of judicial resources; (5) the interests of persons not parties to the civil litigation; and (6) the interest of the public in the pending civil and criminal litigation. (Avant, supra at 887, citing Keating v. Office of Thrift Supervision, supra at 324.) "Courts that are confronted with a civil defendant who is exposed to criminal prosecution arising from the same facts 'weigh the parties' competing interests with a view toward accommodating the interests of both parties, if possible.'" (Fuller v. Superior Court (2001) 87 Cal.App.4th 299, 307, citing Pacers, supra at 690.) Here, Moving Party (MP) seeks a stay of the entire action, or alternatively, to stay all discovery. However, as Responding Parties (RPs) correctly point out, MP has no standing to assert any Fifth Amendment privilege as to anyone but himself. (Hoffman, supra at 485-486 ["The Fifth Amendment declares in part that 'No person ... shall be compelled in any Criminal Case to be a witness against himself,'" emphasis added].) The Fifth Amendment privilege protects MP from providing incriminating testimony against himself, but does not extend to precluding discovery from third parties. (Avant, supra at 887 ["the privilege being personal to the individual criminal defendants, the claimed threatened infringement on that privilege cannot be a burden to Avant"].)
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	Further, the other two defendants in this action are entities, which do not have any Fifth Amendment privilege against self-incrimination at all. (Avant, supra at 886 [“Clearly, because a corporation has no right against self-incrimination, it has no Fifth Amendment interests to protect”].) MP’s Reply continues to conflate the issues, arguing that even “[a] perfectly innocent question to plaintiff may be the missing link the prosecution needs to establish some factual element of Dr. Jan’s alleged crimes,” which MP contends is precluded under Hoffman, supra. (Reply at 4:10-15; emphasis added.) Hoffman involved a witness’ invocation of his Fifth Amendment rights directly, not any third party discovery. Plaintiffs certainly do not have any obligation to avoid offering testimony or other evidence that could criminally implicate MP. Nor does MP cite any authority that prosecutors cannot obtain evidence from sources other than MP. The relevant factors discussed above favor a stay of discovery in this action as to MP, rather than a complete stay of all proceedings. The instant action and the criminal proceedings against MP arise out of the same incident, and there does not appear to be any dispute that discovery to/from MP will necessarily implicate MP’s 5th Amendment rights. Further, this matter is still in its relatively early stages, and no trial date is set. Thus, there would be little impact to the court’s resources if discovery as to MP only is stayed. Finally, there appears to be little prejudice to the other parties if discovery is stayed as to MP only; as noted above, potential prejudice to MP via discovery from third parties is not part of the Fifth Amendment analysis. RULING: Defendant Hong-An Jan, M.D.’s motion for an order to stay civil proceedings, or in the alternative, to stay discovery, is GRANTED IN PART and DENIED in part.
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		The Court orders that discovery to moving party is STAYED, due to pending criminal proceedings. (Avant! Corp. v. Superior Court (2000) 79 Cal.App.4th 876, 885; Pacers, Inc. v. Superior Court (1984) 16 Cal.App.3d 686, 689.) The request to stay this action entirely, and/or to stay all discovery, is DENIED. (Avant! Corp. v. Superior Court, supra at 886 [“Clearly, because a corporation has no right against self-incrimination, it has no Fifth Amendment interests to protect”]; see also id. at 887 [Fifth Amendment privilege was personal to individual employees, not employer].) An Order to Show Cause re: Status of Criminal Proceedings is set for June 7, 2027 at 9 AM. The Case Management Conference set for September 28, 2026 is also continued to June 7, 2027 at 9 AM. Moving party shall give notice of all the above.
11	Mitcham vs. West Coast Servicing, Inc. 2025-01504740	Demurrer to Amended Complaint Defendant West Coast Servicing, Inc.’s demurrer to the First Amended Complaint [FAC] is SUSTAINED as to the 1st and 2nd causes of action, with leave to amend, on grounds of failure to state facts sufficient to constitute a cause of action. (Code Civ. Proc., § 430.10, subd. (e).) The remainder of the demurrer is OVERRULED. Moving defendant’s request for judicial notice is (1) GRANTED as to Exs. A-D, limited to the fact that the documents were recorded, but not of the truth of their contents (Poseidon Development, Inc. v. Woodland Lane Estates, LLC (2007) 152 Cal.App.4th 1106, 1117 [“the fact a court may take judicial notice of a recorded deed, or similar document, does not mean it may take judicial notice of factual matters stated therein”]); (2) GRANTED as to